

Second, Exhibit 9 includes an item for \$16.28 for a court appearance on September 4, 2025. However, September 4, 2025 was the date of oral argument for the demurrer when oral argument was not requested and the tentative ruling was adopted without hearing. The court declines to award this amount. Costs are otherwise awarded in the amount of \$1,063.28.

Accordingly, plaintiffs' motion is granted in part. Plaintiffs are awarded attorneys' fees of \$16,035 and costs in the amount of \$1,063.28 for a total of \$17,098.28.

As the parties have settled, the court on its own motion vacates the October 20, 2026 case management conference and schedules instead an order to show cause hearing regarding dismissal on **October 20, 2026 at 9:00 a.m. in Department 32.**

13. S-CV-0056043 Hill Top Cntr. v. Kelly Architectural & Planning

The motion to compel responses is continued to **September 15, 2026 at 8:30 a.m. in Department 32.**

14. S-CV-0056372 In re the petition of Barber, Chloe

Petition for Approval of Compromise of Claim of Proceeds of Judgment for Minor

The petition for approval of minor's compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; Pearson v. Superior Court (2012) 202 Cal.App.4th 1333, 1337-38.)

15. S-CV-0056512 Jamis-Dow, Carlos v. Vector

Motion for Alternative Service

Plaintiff seeks a court order authorizing mailed service to defendant Vector Construction Development, a Corporation ("Vector") pursuant to Code of Civil Procedure section 413.30. No opposition has been filed.

Code of Civil Procedure section 413.30 provides a court may direct an alternate manner of service "if a plaintiff, despite exercising reasonable diligence, has been unable to effect service of the summons by any of the methods authorized under this chapter." Here, plaintiff has submitted insufficient evidence of diligence.

While plaintiff's evidence includes Vector's Statement of Information including three different addresses (a Sacramento address as the corporation's principal address, another Sacramento address as the mailing address for the corporation, an Auburn address as the address for the agent for service of process), plaintiff presents no evidence of attempts to serve at these three addresses by service of acknowledgment and receipt pursuant to Code

of Civil Procedure section 415.30. Plaintiff presents no evidence of any efforts to personally serve at one of the Sacramento addresses.

Plaintiff states that the individual defendant Adrian Watson has refused to accept service on behalf of Vector. However, Vector's Statement of Information states that defendant Watson is Vector's CEO, Secretary, CFO, and President. All of these designations are listed in Code of Civil Procedure section 416.10(b) as individuals who may be served to effect service on a corporation.

Moreover, a corporate defendant may be served on the Secretary of State with a court order so approving. (Corp. Code, § 1702.) Plaintiff does not explain how the alternative service requested is more likely to provide actual notice than service on the Secretary of State.

Based on the foregoing, plaintiff has shown insufficient evidence of diligence to justify an order authorizing alternative service, nor has plaintiff shown why service on the Secretary of State would be less likely to provide actual notice to Vector than by way of the requested alternative service. The motion is denied.

16. S-CV-0057432 Galvez, Peter v. Elias, Shelby

Defendant is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Set Aside Entry of Default

Defendant Capitol City Real Estate, Inc. ("Capitol City") moves to set aside the May 18, 2026 entry of default against it pursuant to Code of Civil Procedure section 473(b). Plaintiff opposes the motion.

Preliminarily, plaintiff's opposition is untimely filed without explanation. Nonetheless, the court exercises its discretion to consider all briefing submitted in this matter.

The court may "upon any terms as may be just" set aside default due to the moving party's "mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) A motion to set aside default must be made "within a reasonable time, in no case exceeding six months" from the entry of default. (*Ibid.*) A party seeking Section 473(b) relief must demonstrate due diligence and must bring the motion within 180 days. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 982; Code Civ. Proc., § 473, subd. (b).) Here, defendant's motion is timely brought within approximately five weeks of entry of default. As to grounds for relief, defense counsel declares their firm was retained once defendant Shelby Elias (not a party to this motion) was served on April 17, 2026. The firm reviewed the court's online docket and saw no indication plaintiff had sought entry of default as to defendant Capitol City and prepared an answer for filing on May 26, 2026. The answer was rejected and immediately resubmitted for filing on May 28, 2026. Counsel noted the answer did not immediately appear on the docket so continued to